

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS_____
JOY E. AZUARU

[YOUR NAME(S)]

Plaintiff(s),

-against-

Index No. 706505 2021Date Index No.
purchased 3/19/2021**SUMMONS**BROOKLYN MITSUBISHI
CITY TOWING & RECOVERY, INC.
NEW YORK CITY POLICE DEPARTMENT(NYPD)
BERNADETTE FACKOVEC_____
[NAME OF PERSON(S) SUED]

Defendant(s)

To the Person(s) Named as Defendant(s) Above:

PLEASE TAKE NOTICE THAT YOU ARE HEREBY SUMMONED to answer the complaint of the plaintiff(s) herein and to serve a copy of your answer on the plaintiff(s) at the address indicated below within 20 days after the service of this Summons (not counting the day of service itself), or within 30 days after service is complete if the Summons is not delivered personally to you within the State of New York.

YOU ARE HEREBY NOTIFIED THAT should you fail to answer, a judgment will be entered against you by default for the relief demanded in the complaint.

Dated: MARCH 19, 2021
[DATE OF SUMMONS]JOY E. AZUARU

[YOUR NAME(S)]

309 BEACH 91 STREETROCKAWAY BEACH, NY 11693718-810-4911

[YOUR ADDRESS(ES) and]

BROOKLYN MITSUBISHI: 5910 CHURCH AVENUE, BROOKLYN, NY 11203

CITY TOWING & RECOVERY, INC.: 9821 ROCKAWAY BLVD., OZONE PARK, NY 11417

NEW YORK CITY POLICE DEPARTMENT(NYPD): 1612 MOTT AVENUE, FAR ROCKAWAY, NY 11691

Defendant's Address BERNADETTE FACKOVEC: 1612 MOTT AVENUE, FAR ROCKAWAY, NY 11691

[ADDRESS OF PERSON(S) SUED]

Venue: Plaintiff(s) designate(s) Queens County as the place of trial. The basis of this designation is [CHECK ONE]:



Plaintiff(s)' Residence in Queens County.



Defendant(s)' Residence in Queens County.



Other -- Describe: _____

NOTE: THIS FORM OF SUMMONS MUST BE SERVED WITH A COMPLAINT

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

JOY E. AZUARU Plaintiff,

Index No. _____/20__

- against -

COMPLAINTBROOKLYN MITSUBISHI
CITY TOWING & RECOVERY, INC.
NEW YORK CITY POLICE DEPARTMENT(NYPD)
BERNADETTE FACKOVEC
Defendant.

TO THE SUPREME COURT OF THE STATE OF NEW YORK

The complaint of the plaintiff, JOY E. AZUARU, respectfully

shows and alleges as follows:

On May 15, 2019 I gave Brooklyn Mitsubishi money and they took My old car because they said that it will reduce the price of the new car (they lied) and they gave Me what was supposed to be a new 2019 car and the transaction completed in the night and it was the same time that they showed Me the car and they left.

~~Something was wrong with the car but when I informed the the car dealer they refuse to take the car back and they didn't want to give Me a new car and the finance company asked them to give Me back My car and My money release Me and they refused. The finance company said that they will not pay them because something is wrong with the car and for them to return My car and money that I gave them and take back the new defected car that they gve Me and they still refused and said that once I left with the car it becomes My car and they can't take it back. So I gave up trying and I went to the police to ask them what I should do because I haven't had such experience before.~~

~~The police told Me to go to court and sue them and force the Dealer to return My car and money and to take back the defected car that they gave Me and I did what they said.~~

In court I followed the court process and did what they said that I must do on My part and they gave Me a court date for August 26, 2019 for the hearing.

~~On August 23, 2021 two days before the Court hearing, the car Dealer (Brooklyn Mitsubishi) send a tow truck (City Towing & Recovery, Inc.) to tow the car and they didn't have any right to tow it~~

One of the men attacked Me as I was trying to enter My car and he try to pull Me away from entering My car. He grabbed Me by My hip side and yanked My hip as I opened the car and he hit Me with the car door on the left side of My body as I entered My right leg inside My car. I managed to enter My car and as I started My car to pull back but the other tow guy drove back under My car and lifted up My car and I couldn't move it.

I picked up My phone as My body was shaking and I called 911 for police to come and help Me and waited in the car.

When the police came they were two female police (one that look like she is Spanish and one Black) but the one that was asking question was the Spanish looking female police. The male that was driving the tow truck told them that he had no warrant to tow the car but the car Dealer just gave him My plate to go and pick up the car and he said that he was going to call them and ask them what it was about. I told them what happened that the tow guy wearing white t-shirt had attacked Me and he had grabed and pulled (yanked) My hip and he also hit My left part of My body with the car door to weaken Me. I took the papers that had information on the car and court information including a letter from the Finance company and ask the police to please review it and they will see why they are not allow to touch My car but they refuse to look at it and even after the tow guy told that there is no warrant and nothing in their computer for the car other than the car dealer telling them to go and pick the car up and they still refuse to look at My papers and I said to them that I'm the one that called them for help and they are no helping Me and they told Me that I must come out. I was inside the car pleading for them to please take My paperwork and review them and she didn't even want to look at the papers as I held it in My hand attempting to hand it to her and she refused. They blocked both side of the Street so no cars were passing by and other police started gathering. There was no one on the street and I was very concern and I said I'm a Pastor hoping that they might say let Me look at her papers. Other police came and I heard one say to forcfull pull Me out of the car and that's when I got scared for My life because I know that I was being attcked both Spiritually and Physical but I know that GOD live in Me and GOD is with Me and I was Praying and hoping that maybe GOD will touch someone to come and help Me and I didn't do anything wrong so I thought if they review My papers and see that I'm the innocent one that they will correct them and tell them to

leave My car alone. They didn't arrest the tow guy that had attacked Me but left him to seat inside their tow truck.

I was afraid and they started walking around My car looking inside like they were looking for something and I was very concern for My life. I had told the police before that I have a medical need because I was poisoned and the tow guy had attacked Me and My body was shaking and My right side of My leg is frozen and to please call the ambulance for Me and she refused and I pleaded to her to please call the ambulance for Me because I need help and after few pleading with her she then called the ambulance. When the Ambulance came they were across the street from Me and I pleaded for her to please asked the Ambulance to come and help Me because I need help and she refused and told Me to walk across the street to the Ambulance and I knew that I had to be one that she hated. I was afraid for the first time that they were going to kill Me and I thought that they will shot Me or stomp on Me and accuse Me of attacking them and I knew that I might fall because I was weak and I was afraid.

I picked things that I might need and tried to pull Myself out from My car but My right leg got stuck at the lower part of the car and I couldn't move. One male police that came later and was standing next to the female police that look like she is Spanish and he looked at Me smiling and laughing and he said something like your leg is stuck right and I said yes and he used his hand and pulled My leg out from the car were it was stuck and lowered it down and I felt the pain and the weight fell on one side of My body and I was afraid but I was still trying to come out and as I tried to turn I fell down on the paved streer on Beach 37 Street.

When I woke up it was raining a little and I saw a male police standing next to Me were I was on the floor and the same femal police that look like a Spanish looking at Me and I saw the man that was drove the toe truck looking at Me and he looked like he was afraid but I didn't see the black female police that came with the other female police that look like she is Spanish and I didn't see the male police that had pulled My leg out from My car. And it was not raining when I was coming out of My car and I didn't see the other police that had came so I didn't know how long I was knocked out. And I was embarrassed because I didn't do anything wrong but I was treated like I did.

Then she called the Ambulance to come and pick Me up after I'm hurtin. That day was not the day for Me to die as GOD refused. But because of the hurt in Me and the unseen cut I was in pain and I didn't know how much pain I can handle and I didn't want to hurt anymore so I told the male EMS worker that help Me inside the Ambulance to please let them know that I'm a Woman of GOD and I'm innocent and he said that I'm not going to die because I was hurting.

In the Hospital they didn't do a full check up because on the paperwork they only wrote that I fell down and I hate Hospital and once they said that is okay to leave, I left because I don't like Hospital so I left and it didn't get better and I have tried different methods to heal and there's times I can't get up from the bed and sometimes I'm in pain that I can't even call 911 for help because I can't move and the pain are too much and I can't even go to door to open the door if they come so I kept praying and GOD always worked on Me. I go to therepy and it hurt so much

that I can't go every week and Pain Management is too expensive and I have specialist Doctors and I wear things to help Me walk and sleep and I use heating. Sometimes I feel like part of Me is going to fall. Also sometimes when I walk I feel like two wooden sticks screwed together and I'm concern that I might fall but I hold on and when the pain comes I don't know what to do so I just Pray for GOD to help Me. But I needed to come and tell My part in Court

As a Woman of GOD and a Pastor, I was attacked by too many and I choose to fight back and refuse to be a victim. and I prayed for GOD to touch all that are involve to tell the truth and nothing but the truth so help Me GOD and I needed help.

The car Dealer Brooklyn Mitsubishi that refuse to give Me a good new car as agreed and refuse to return My car and money back and instead of doing what is right but choose to steal from Me and subjected Me to dead threats and they didn't care if live or not.

~~They that saw no use and knew that their car was not safe to continue use and knowing that the the right thing is to give Me a good new car or return the car that they took and the money and leave Me a lone but choose not to do right and they are responsible for what happened to Me.~~

The Tow company (City Towing & Recovery, Inc.) that attacked Me and zanked My hip and hit Me with the car door wasn't thiking if I die or not and knowing I'm a woman set to have Childrens and he was only interested in getting the tow money even if he had kills Me doing it. And they added to My hurt

~~And if the car war hooked they would have carried it and say nothing to Me and because it was not hooked up yet I have the right to prevent them from stealing My car and he that grabed and yanked My hip and hit Me with the car door knew that it will injure Me but didn't care for My life and his responsible too for what happened to Me.~~

The police are to serve and protect the innocent like Me but they didn't protect or care about Me. The police is reponsible and his is responsible because they knew that I was weak and My leg is frozen and I couldn't walk and instead of geting Me help he choose to laugh and pulled the frozen leg out of the car and I fell down because of it and evil which possess them and the Demons involve are the same and didn't want Me to live and it hurt but GOD said I must live and the police are responsible and they know it.

The Police were hired to serve and help and protect the innoent and to render justice to all and not to do harm and they knew that I had medical need and I was injured and they didn't care and they knew that I was going to fall and they knew that I was weak and they knew what to do to help Me but they decied to kill

Me and I didn't want to die the same female police she knew as a female that have Family and she knew that I could die if I fall down and I want to have My Own Families too and she refuse to help or get Me help.

The Defendants NYPD failed to do their duty that they were hired to do to the public and instead subjected the Plaintiff to danger and put in harms way

By reason of the facts and circumstance stated above, Plaintiff has been damaged by Defendants in the sum of \$10,000,000.

WHEREFORE, Plaintiff demands monetary judgement against defendant in the sum of \$10,000,000 plus interest from August 23, 2019, costs and disbursements, together with any other relief Court finds to be just and proper.

Dated: MARCH 19, 2021

JOY E. AZUARU

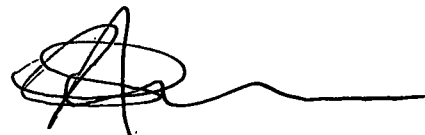
Plaintiff

VERIFICATION

JOY E. AZUARU

, being duly sworn, deposes and says:

I am the plaintiff in the above-entitled action. I have read the foregoing complaint and know the contents thereof. The same are true to my knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters I believe them to be true.



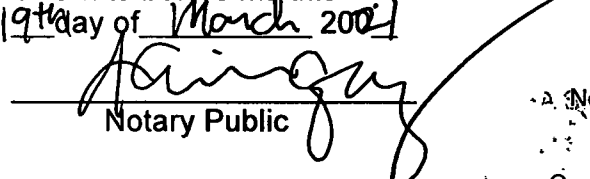
Signature

JOY E. AZUARU

Print Name

Sworn to before me this

19th day of March 2021


Notary Public

ANNA LISA S. ENRIQUEZ
A Notary Public - State of New York
No. 04EN6405207
Qualified in Queens County
Commission Expires March 2, 2024